# Indian Constitution

■ **Unwritten Constitution:**

- Nations with unwritten constitutions operate based on customs and traditions.
- These countries typically foster a democratic culture, thus obviating the need for a detailed written constitution.
- Despite the absence of a written document, governance principles may still be codified, such as the Act of Settlement 1701 in Britain.
- Unwritten constitutional nations uphold the essence of the constitution, namely the Rule of Law.

■ **Written Constitution:** A written constitution meticulously delineates rules and regulations.

- The legislative body is empowered to enact supplementary laws. Constitutions crafted by constituent assemblies are termed as written constitutions.
- Examples include India and the USA.
- Therefore, it can be asserted that no constitution worldwide is entirely written or entirely unwritten.

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➢ **Government Branches: Executive, Legislature, and Judiciary**

■ **Legislature:**

- **Role**: Drafting legislation, amending the constitution, supervising administration, approving the budget, addressing public grievances, and deliberating on various matters such as development plans, national policies, and international relations.
- In India, the Union Legislature, known as Parliament, comprises the President and two chambers: the Council of States (Rajya Sabha) and the House of the People (Lok Sabha).
- All legislation must receive approval from both houses of Parliament. Additionally, Parliament exercises oversight over delegated legislation.

■ **Executive**:

- **Responsibilities**: Implementing laws and policies formulated by the legislature and often contributing to policy formulation.
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In India, the Union Executive consists of the President, the Vice-President, and the Council of Ministers led by the Prime Minister, who advises the President.

- The Council of Ministers includes Cabinet Ministers, Ministers of State (independent charge), Ministers of State, and Deputy Ministers.

■ **Judiciary:** The primary function of the Judiciary is to interpret laws and resolve disputes among individuals, serving as the guardian of the constitution.

➢ **Principle of Separation of Powers:**

- This principle asserts that no single individual or entity should hold authority over all three branches of government: legislative, executive, and judiciary.
- It suggests that:

✓ No individual should serve in multiple branches of government simultaneously.
✓ Each branch should confine itself to its designated functions and refrain from assuming the roles of other branches.
✓ No branch should infringe upon the duties of the other branches.
✓ This doctrine is rooted in the concept of checks and balances, wherein each branch of government monitors and restrains the potential overreach of the others.

➢ **WHAT IS CONSTITUTION?**

- A constitution encompasses the core principles guiding the establishment and governance of a state.
- It serves as the fundamental law of the land, embodying the hopes and objectives of a society.
- Within this framework, individuals pursue their aspirations, objectives, and liberties.
- It sets the essential values that must not be transgressed.
- The constitution is a dynamic document that adapts and develops in response to the evolving needs and aspirations of society, facilitated by mechanisms such as:
  ✓ Amendments to the constitution

- ✓ Judicial interpretations and rulings
- ✓ Established customs and practices
- ✓ Enacted statutes

## ➢ IMPORTANCE OF THE CONSTITUTION

- The constitution provides a political structure and allocates authority for decisionmaking.
- It reflects our internal disputes, hopes, values, and the collective endeavor of our nation.
- The constitution also bestows a moral sense of self.
- It establishes, mirrors, and affirms an Indian sense of identity for its citizens.

## ➢ OBJECTIVE OF CONSTITUTION

- The aim of the constitution is to facilitate the fulfillment of societal aspirations and establish the framework for a fair society.
- It delineates the authority responsible for decision-making within the society and outlines the structure of the government.
- Additionally, it serves to establish fundamental regulations that enable basic coordination among society members and imposes boundaries on the government's authority over its citizens.

## ➢ CONSTITUTIONALISM

- The political philosophy you're describing is commonly referred to as constitutionalism. Constitutionalism is a system of government based on the principles of limited government and the rule of law, where the authority of the government is derived from and restrained by a constitution.

- Originating from documents such as the Magna Carta (1215) and the English Bill of Rights, constitutionalism asserts that government power should be constrained by a set of fundamental laws and principles. These laws serve to protect the rights and liberties of individuals and provide a framework for the operation of government.

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# SALIENT FEATURES OF INDIAN CONSTITUTION

## Introduction

- **The Indian constitution stands out for its distinctiveness both in substance and ethos.**
- **While drawing inspiration from various global constitutions, it possesses distinctive traits that set it apart from others worldwide.**

**Lengthiest Written Constitution of the World**

- **Initially, in 1949, the Constitution comprised a preamble, 395 articles (Now 448 Articles), organized into 22 parts (Now 25 Parts), and 8 schedules( now 12 Parts), which were derived from diverse origins.**
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**Reasons for the vastness of the country and its diversity, influence of the Government of India Act 1935, adoption of a single Constitution for both Center and States, involvement of legal experts, and inclusion of matters traditionally governed by original legislation and political convention within the constitutional document.**

**Combination of rigidity and flexibility**

- **The degree of rigidity or flexibility is determined by the process of amendment, where a challenging procedure indicates rigidity.**
- **The Indian constitution embodies both rigid and flexible characteristics.**
- **Since a majority of provisions can be amended with a simple majority, the Indian constitution is often considered more flexible than rigid.**

**Drawn from various sources**

- **Dr. B R Ambedkar stated that the Constitution of India was crafted after thoroughly examining numerous global constitutions.**
- **The structural framework of the Indian Constitution draws heavily from the Government of India Act of 1935.**

- **The philosophical elements, including Fundamental Rights and Directive Principles of State Policy, find their inspiration from the American and Irish Constitutions, respectively.**
- **The political components of the Constitution, such as the principle of Cabinet government and the dynamics between the executive and legislature, are influenced by the British Constitution.**

**Parliamentary Form of Government**

- Collaboration and synchronization between Executive and Legislative branches, in contrast to the division seen in presidential systems.
- Existence of both symbolic and effective executives, resulting in a dual executive arrangement.
- Governance by the predominant party.
- The principle of shared accountability of the Executive to the Legislature.
- Ability to disband the Lower House of Parliament.
- Leadership roles held by the Prime Minister and Chief Ministers.
- Composition of ministerial memberships.

**Synthesis of Parliamentary Sovereignty & Judicial Supremacy**

- Parliamentary Sovereignty emanates from the British Parliament.
- Judicial Supremacy akin to the American Supreme Court.
- Judicial Review in India is more constrained, relying on procedures established by law, as opposed to the broader scope of due process of law in the US.
- The Indian Supreme Court holds the power to invalidate parliamentary laws, whereas Parliament retains the ability to amend the Constitution.

## Integrated and Independent Judiciary

- **Unified Court System:** A single court system enforces both central and state laws, unlike the United States where federal laws are enforced by federal courts and state laws by state courts.
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**Judicial Independence:** This principle mandates that the executive and legislative branches refrain from impeding the judiciary's function in a manner that obstructs the delivery of justice.

**Importance of an Independent Judiciary:**

a. Safeguarding the rule of law and upholding legal supremacy.
b. Protecting individual rights and resolving disputes in accordance with legal frameworks.
c. Preventing the erosion of democracy into individual or group dominance.

- **Balanced Accountability:** Despite independence, the judiciary remains subject to accountability. It operates within the democratic framework and is answerable to the Constitution, democratic norms, and the populace, ensuring it doesn't act arbitrarily.

**Fundamental rights**

- Advancement of political democracy is a primary aim.
- Acts as a check on potential abuse of power by the executive and legislature.
- Subject to legal enforcement or adjudication.
- Not considered inviolable; subject to amendments by Constitutional Amendment.
- Can be temporarily suspended during a National Emergency, except for Articles 20 and 21.

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**Directive Principles of State Policy**

- Aimed at fostering socio-economic democracy.
- Rooted in social, Gandhian, and liberal-intellectual ideologies.
- Seeks to establish a state committed to welfare.
- Not subject to legal enforcement or adjudication.

**Fundamental Duties**

- Introduced amid an internal emergency through the 42nd Constitutional Amendment Act of 1976.
- Resulted from the recommendations of the Swaran Singh Committee.
- Encompassed within Part IV-A and Article 51 A of the Constitution.

**Secularism**

- Principles outlined in the Preamble and Articles 14, 15, 16, 25, 26, 27, 28, 29, 30, and 44 (Uniform Civil Code).
- **Two Conceptual Approaches:**

a. **Negative**: Advocates separation between religion and state, akin to the United States, less applicable in a multi-religious nation like India.

b. **Positive**: Emphasizes providing equal respect and protection to all religions equally, a principle followed in India.

**Universal Adult Franchise**

- Every individual aged 18 and above possesses the right to vote, free from discrimination based on caste, race, religion, gender, literacy, wealth, and other factors.
- **The voting age was lowered from 21 to 18 years in 1989** through the **61st Constitutional Amendment Act of 1988.**

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**Single Citizenship**

- The Indian Constitution recognizes only one form of citizenship, which is Indian citizenship.
- In the United States, individuals hold citizenship at both the national level (as citizens of the USA) and at the state level (as citizens of their respective states), a concept known as dual citizenship.

**Independent Bodies**

The Indian Constitution not only establishes the legislative, executive, and judicial branches of both the Central and state governments but also institutes several independent bodies, including:

a. **The Election Commission,** tasked with ensuring the integrity of elections to the Parliament, state legislatures, and the offices of the President and Vice President of India.

b. **The Comptroller and Auditor-General of India,** responsible for auditing the financial accounts of both Central and state governments. This office serves as a guardian of public funds, assessing the legality and propriety of government expenditures.

c. **The Union Public Service Commission,** which conducts examinations for recruitment to All-India services and higher Central services, and provides advice to the President on disciplinary matters.

d. **State Public Service Commissions** in each state, responsible for conducting examinations for recruitment to state services and advising the governor on disciplinary issues.

**Emergency Provisions**

- Transformation from federal to unitary structure without requiring a constitutional amendment.
- **National Emergency** can be declared in instances of war, external aggression, or armed rebellion, as outlined in Article 352.
- **State Emergency** can be imposed when there's a breakdown of constitutional machinery in states (Article 356) or failure to adhere to directives of the courts (Article 365).
- **Financial Emergency** can be declared in situations threatening the financial stability or credit of India, governed by Article 360.

**Three-tier Government**

- The 73rd and 74th Constitutional Amendment Acts were enacted in 1992.
- These amendments introduced a novel tier of governance, distinct from those in any other constitution globally.
- The **73rd Amendment Act** established **Panchayats,** outlined in **Part IX and Schedule 11.**
- The **74th Amendment Act** established **Municipalities**, specified in **Part IX-A and Schedule 12.**